

25CHCV03875 25CHCV03875

County: los-angeles

Division: Civil Law and Motion

Department: F49

Hearing date: 2026-07-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF49%2C07%2F20%2F2026

Source SHA-256: 4c548a6dc2eafac5ee420ad64edb849bdc827d77266c5422ec45c1e31dee0f62

Case Number: 25CHCV03875 Hearing Date: July 20, 2026 Dept: F49

Dept. F49

Date: 7/20/26

Case Name: Maria Leon, et al. vs. Southwest Pointe LLC, and Does 1-10

Case No. 25CHCV03875

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 20, 2026

PETITION TO APPROVE COMPROMISE OF DISPUTED CLAIM FOR MINOR

Los Angeles Superior Court Case No. 25CHCV03875

Petition filed: 6/26/26

MOVING PARTY: Plaintiff Jacqueline Leon, by and through her parent and guardian ad litem, Petitioner Maria Leon

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: Petitioner seeks the Court’s approval of the settlement that her minor child, Plaintiff and Claimant, Jacqueline Leon, reached with Defendant.

TENTATIVE RULING: The Petition is GRANTED.

BACKGROUND

This habitability action arises from the alleged failure of Defendant Southwest Pointe Inc. (“Defendant,” erroneously sued as “Southwest Pointe LLC”) to make necessary repairs to the property commonly known as 14265 Van Nuys Blvd (the “Subject Property”), leading to unsanitary conditions compromising Plaintiffs’ health.

On October 31, 2025, Plaintiffs Maria Leon (“Petitioner”), Danielle Guadalupe Mendez, and Jessica Joy Alfaro, Jacqueline Dina Leon (“Jacqueline”), and Ally Morgan Alfaro, minors by and through their Guardian ad Litem, Maria Leon (collectively, “Plaintiffs”), filed the Complaint against Defendant and Does 1 through 10, alleging the following causes of action: (1) negligence (Civ. Code §§ 1714(a), 3333), (2) breach of warranty of habitability, (3) breach of covenant of quiet enjoyment, and (4) nuisance.

On May 20, 2026, Defendant filed an Answer.

On June 9, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On June 26, 2026, Petitioner filed the instant Petition for Approval of Compromise of Claim on behalf of Jacqueline (the “Petition”).

No opposition or objection to the Petition has been filed.

ANALYSIS

Rule/Requirement/Component

Application

Comments

Claimant (minor)

Jacqueline Leon

DOB: 5/22/22, age: 4

Guardian ad Litem

Maria Leon

Parent, GAL status granted 11/3/25

Settlement (Total)

\$6,500.00 (MC-350, ¶ 10a)

Gross settlement apportioned between five total Plaintiffs, with greater apportionment to adult Plaintiffs to compensate for loss of personal property, rent abatement, contract breach, and inconvenience. The Court finds the apportionment to be reasonable.

Injuries

Allergies and cough caused by uninhabitable property conditions. (MC-350, ¶¶ 5-6)

Medical treatment received?

Evaluation and treatment for allergies and cough. (MC-350, ¶ 7)

Completely healed of injuries?

Yes. (MC-350, ¶ 8a)

Medical Expenses Incurred (Total)

\$0.00 (MC-350 ¶ 12a(1))

Medical Bills (Documentation)

N/A.

Outstanding medical payments owed from proceeds

\$0.00 (MC-350, ¶ 12a(4))

Provider Liens (Documentation)

N/A (MC-350, ¶ 12a(5))

Negotiated Lien Reductions?

N/A

Documentation of lien reductions

N/A

Attorney Fees

\$1,625.00 (25% of \$6,500.00) (MC-350, ¶ 13a)

The Court finds the requested fees to be reasonable.

Declaration of fees and copy of retainer? (Cal. Rules of Court, rule 7.955(b).)

Yes. (MC-350, Attach. 13a, Asidi Decl.; Attach. 17a.)

Litigation Costs

None. (MC-350, ¶ 13b)

Are the costs itemized and reasonable?

N/A. (MC-350, Attach. 13b)

Total to be paid to minor

\$4,875.00 (MC-350, ¶ 16f)

Blocked account?

No. (MC-350, ¶ 18b(5).)

Total to be delivered to parent, Maria Leon. Value of minor's estate consists solely of the net settlement amount.

(MC-350, ¶ 18b(5), Attach. 18b(5).)

Proposed order to approve compromise is congruent with Petition?

Yes. (MC-351.)

Proposed order to deposit funds is congruent with Petition?

N/A.

Disposition

GRANTED.

After thoroughly reviewing the Petition and supporting documents, the Court is satisfied that the proposed settlement is fair, reasonable, and in the best interests of the minor.

The Court accordingly GRANTS the Petition.

CONCLUSION

The Petition for Approval of Compromise of Claim, filed by Petitioner Maria Leon on behalf of Plaintiff and Claimant, Jacqueline Leon, is GRANTED.

Moving party to give notice.